Summary: The Legal Position of UN Peacekeepers in Southern Lebanon

Alexander Gilder (University of Reading), *Articles of War*, Lieber Institute, West Point, 18 October 2024 – blog article

In one paragraph. After Israel's ground invasion of Lebanon on **1 October 2024**, the IDF asked UN peacekeepers (**UNIFIL**) to leave posts on the Blue Line, fired at UN positions (injuring peacekeepers) and forced its way into a UN base with tanks. Gilder analyses three questions. (1) **Can Israel demand UNIFIL's withdrawal?** No – only the **host state (Lebanon)** and the **Security Council** decide; obstructing UNIFIL's movement violates **Resolution 1701**. (2) **Are peacekeepers protected under IHL?** Yes – as long as they are **not a party to the conflict**, they are protected like **civilians and civilian objects** (CIHL Rule 33); **deliberately** targeting them is a violation and a war crime. But IHL forbids only **targeting**: **proportionate collateral damage** to peacekeepers near a lawful target is not unlawful. (3) **Inviolability of UN premises**: under the **1946 Convention on Privileges and Immunities of the UN** (CPIUN), forced entry or a drone inside a UN post violates inviolability **even where it does not violate IHL**.

1. The facts (October 2024)

- UNIFIL has posts across southern Lebanon, many along the **Blue Line** (the boundary separating Lebanese and Israeli forces).
- **1 Oct.**: the IDF entered Lebanon. **4 Oct.**: the IDF asked **Ireland** to remove its peacekeepers from post 6-52; Ireland said troop movements are for the UN; UNIFIL refused and objected to IDF forces positioned right next to UN posts. Irish President Higgins called this "outrageous".
- **9 Oct.**: the IDF "deliberately fired at and disabled" perimeter cameras; post 1-31 was fired on, and an IDF **drone** flew inside the post at the bunker entrance.
- **10 Oct.**: UNIFIL HQ in Naqoura and nearby posts were hit repeatedly; a **Merkava tank** fired at an observation tower, causing two peacekeepers to fall.
- **12 Oct.**: a UNIFIL logistics movement was obstructed. **13 Oct.**: two tanks **destroyed the main gate** of a post and forcibly entered it, asking the base to turn out its lights, leaving 45 minutes later. The IDF said the tanks reversed into the post while under fire to evacuate casualties.
- PM Netanyahu called on the UN to withdraw UNIFIL from combat areas, claiming Hezbollah was using peacekeepers as "**human shields**".

2. UNIFIL's mandate and Israel's removal request

- **Mandate**: since **1978**, UNIFIL has been mandated to confirm Israeli withdrawal, restore peace and security and help Lebanon restore state authority. **Resolution 1701 (2006)**, after the 34-day Israel–Hezbollah war, expanded it: protect civilians under imminent threat, assist humanitarian access, ensure the area is not used for hostile activities, resist forceful obstruction of its mandate, protect UN personnel and facilities, and ensure **freedom of movement**.
- **Consent**: a UN peacekeeping mission needs the **host state's consent** (a principle dating from the 1950s); the host can withdraw it at any time (e.g. **Mali, 2023**). The consent of other "parties" in the UN Principles and Guidelines is desirable for practical and safety reasons, but is **not a legal requirement**.
- UNIFIL is deployed only on **Lebanese** territory, so only Lebanon's sovereignty is affected: **Israel cannot require UNIFIL to withdraw**. It stays as long as Lebanon consents and the Security Council wishes – the Council unanimously renewed the mandate in August 2024.
- Obstructing UNIFIL's **freedom of movement** would violate Resolution 1701, which Israel must comply with as a UN member state.

3. Protection of peacekeepers under the law of armed conflict

- The Geneva Conventions and Protocols do **not expressly protect** peacekeepers. The only indirect reference is **AP I Art. 37(1)(d)**: perfidious use of **UN emblems or uniforms**.
- The accepted view: peacekeepers (military and civilian), buildings, vehicles and equipment are **not military objectives** – attacking them is unlawful in an IAC; in a NIAC they are "persons taking no active part in hostilities" under **Common Article 3**. This is reflected in **CIHL Rule 33** (ICRC Study) and military manuals.
- **Condition**: this presumes the UN and its **troop-contributing countries** are **not parties** to the conflict. The 2015 High-Level Panel on Peace Operations warned that enforcement action "may make the United Nations forces, and the mission as a whole, a party to the conflict". The UN has said it cannot be a party under the GCs, but troop-contributing states clearly can become parties if their forces take an active part in hostilities. Peacekeepers can thus lose their **presumptive civilian status**.
- At the time of writing there was **no evidence** that UNIFIL was taking an active part in hostilities – so it remained protected.
- **Deliberate** attacks on peacekeepers are a "straightforward violation" of IHL and a **war crime** – Rome Statute **Art. 8(2)(b)(iii)** ("as long as they are entitled to the protection given to civilians"). Neither Israel nor Lebanon is party to the Rome Statute, but the provision shows the norm's importance.

Targeting v. collateral damage

- Firing "**toward**" an observation tower is not in itself a violation: it must be shown the IDF was **targeting** the UN tower. Under the **principle of distinction**, the targeting decision is key.
- Fire in the **vicinity** of peacekeepers that injures them is not a violation without evidence they were targeted.
- Israel may lawfully attack another party (Hezbollah) and cause **proportionate collateral damage** – including to UN personnel. But states will argue politically that every effort must be made to (a) **minimise avoidable harm** to UN personnel and premises and (b) take **responsibility** for unavoidable harm.

4. The inviolability of UN premises

- **CPIUN 1946, Art. II**: UN premises are **inviolable** and immune from any form of interference. The model **status of forces agreement** places mission premises under the UN's "exclusive control and authority". Inviolability (derived from diplomatic law, cf. the 1961 Vienna Convention) protects UN facilities from intrusion or unauthorized entry so the UN can operate without interference (Laurie Blank).
- Both the CPIUN and IHL apply; conflicts are resolved by **lex specialis**.

Incident	CPIUN (inviolability)	LOAC / IHL
Tanks destroy the main gate and enter the post (13 Oct.)	**Violation** – clear unauthorized entry	Violation if **deliberate** force was used (premises are not a military objective). If the IDF's necessity claim (tanks under fire) is accepted: perhaps no IHL violation – but the CPIUN violation remains
Cameras "deliberately fired at and disabled" (9 Oct.)	Interference with UN property	**Deliberate** targeting of the post and its equipment would be a violation and a **war crime**; UNIFIL has not lost protection
Fire hitting the bunker entrance of post 1-31	—	UN did **not** call it deliberate; may have been aimed at a nearby military objective. Israel bears the burden of showing its targeting was directed at a lawful target

Incident	CPIUN (inviolability)	LOAC / IHL
IDF drone inside the post	**Violation** of inviolability (CPIUN is lex specialis)	**No violation** – no use of force, nothing targeted

- The UN rightly distinguishes: “any **deliberate** attack on peacekeepers is a grave violation of international humanitarian law and of Security Council resolution 1701”.
- **Conclusion**: the Security Council should reiterate that all parties must respect UNIFIL’s **freedom of movement**, not deliberately target peacekeepers or their positions, and condemn forced entry into UN positions.

Later developments (not in the article): an Israel–Lebanon ceasefire took effect on 27 November 2024, with Israel keeping some positions in the south; fighting resumed in 2026. In August 2025 the Security Council extended UNIFIL’s mandate a final time, with the mission due to end and withdraw after 2026.

Key takeaways

- Only the **host state** (Lebanon) and the **Security Council** decide whether UNIFIL stays – **Israel cannot demand its withdrawal**; obstructing its movement breaches **Res. 1701**.
- Host-state **consent** is the legal requirement for peacekeeping; consent of other parties is only practical, not legal.
- IHL treaties do not expressly protect peacekeepers, but under **custom (CIHL Rule 33)** they are protected like **civilians and civilian objects** – as long as they are **not a party** to the conflict.
- Peacekeepers can **lose** that protection if the UN or troop-contributing states take an active part in hostilities – not the case for UNIFIL in 2024.
- **Deliberate** attacks on peacekeepers are a violation and a **war crime** (Rome Statute Art. 8(2)(b)(iii)/(e)(iii)); **proportionate collateral harm** from attacks on lawful targets nearby is not.
- The decisive question is the **targeting decision** (distinction): fire “toward” or near UN posts is not automatically unlawful.
- UN premises are **inviolable** (CPIUN 1946): forced entry or a drone inside a post violates inviolability **even when IHL is not breached** – the two regimes apply side by side (lex specialis).
- Compare **Labuda (CAR)**: there, peacekeepers **attacked** an armed group and risked becoming a party; here, peacekeepers are **bystanders** caught between parties and keep their protection.

Why it is relevant to this week’s topic

Unorthodox armed actors

- UN peacekeepers are armed, uniformed and military – yet usually **not combatants** but protected like civilians. The article explains this special status and when it is lost (if the UN or troop-contributing states become **parties**).
- It raises the debate whether the **UN itself** can be a party to a conflict, or only the **troop-contributing states** – linking to the ICRC 2024 paper on multinational forces (command and control) and to Labuda’s CAR article.
- It shows how the protection of peacekeepers depends on **host-state consent** and the **Security Council mandate** – a legal basis different from states’ armed forces.

Conduct of hostilities

- It is a clear application of the **principle of distinction**: what matters is whether peacekeepers were the **object** of attack, not whether they were harmed.

- It applies the **proportionality** rule: incidental harm to protected persons and objects (here peacekeepers) near a military objective is lawful if not excessive – while urging **precautions** to minimise it.
- It touches on **human shields** (Netanyahu's claim that Hezbollah uses peacekeepers as shields): even if true, the attacker must still respect proportionality and precautions – the shields do not lose protection.
- It shows how the **burden of evidence** works in practice: proving a deliberate attack (and a war crime) requires showing the targeting decision.

Means and methods of warfare

- It involves specific methods: **tanks** forcing entry into a UN base, **drones** inside protected premises, firing at **surveillance cameras** – showing that some acts that are not "attacks" under IHL may still be unlawful under **other regimes** (CPIUN, Res. 1701).
- **Perfidy**: AP I Art. 37(1)(d) prohibits feigning protected status by using UN emblems or uniforms – the only IHL treaty rule that mentions the UN.
- It illustrates how IHL interacts with other bodies of law (privileges and immunities, Security Council resolutions, international criminal law) in assessing the lawfulness of military operations.